

Farhan Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · Writ-C No. 4159 of 2022 · **Writ disposed; petitioner relegated to clause 6.8 objection; coercive action stayed.**

HEADNOTE

Writ seeking quashing of a recovery certificate of Rs. 11,16,980 disposed of without opinion on merits. Petitioner given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the distribution licensee to decide it within four weeks after hearing and to confront adverse material within a week. Coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Farhan Khan petitioned the Allahabad High Court seeking a writ of certiorari to quash a recovery certificate dated 24 June 2021 issued by the fifth respondent, requiring him to pay Rs. 11,16,980. The sixth respondent is the power distribution corporation. Its counsel stated on instructions that the petitioner might file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Division Bench heard the parties on 25 May 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand under clause 6.8

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If so submitted, the distribution licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and shall confront the petitioner with all adverse materials within a week of submission of a certified copy of the order. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ challenging a recovery certificate disposed of without merits; petitioner relegated to an objection under Para 6.8 of the Supply Code. ¶ 1

fresh-objection-under-clause-6.8 Petitioner given liberty to submit a fresh objection under Para 6.8 within four weeks, to be decided after hearing, with adverse material to be confronted within a week. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 24.6.2021 AND THE DEMAND OF RS. 11,16,980

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1